

***Richard Orcutt, et al. v. Karen Hale, et al.*, 20CV-0656 (consolidated with 20CV-0658, 20CV-0662, 21CV-0052)**

Hearing: Motion to Tax Costs

Date: July 29, 2026

Richard Orcutt filed this action on December 21, 2020, against Karen Hale. Trial was held in January 2026, resulting in a jury verdict for Hale. An Amended Judgment on Special Verdict was entered on February 9, 2026.

Hale subsequently filed a Memorandum of Costs seeking costs of \$47,164.25. Orcutt seeks to tax the following costs: (a) deposition costs of \$15,392.20; (b) service of process costs of \$12,735.47; (c) costs of exhibits totaling \$8,127.40; and (d) other costs in the amount of \$2,692.62. Orcutt argues (1) that Hale did not submit any evidence or documentation supporting the claimed costs and (2) that the costs in these four categories are excessive.

First, the verification on the memorandum of costs “establish[es] the reasonable necessity of the costs claimed. There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted.” (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; Cal. Rules of Court, rule 3.1700(a)(1) [requiring verification].)

Second, “ ‘[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.’ [Citation.]” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131, *as modified on denial of reh’g* (June 14, 1999).) Regardless of the burden, Hale has submitted documentation supporting the contested charges. (Hill Edwards Decl., Exs. D, E, G, I.) Orcutt did not file a reply.

The Court finds the requested costs reasonable.

ORDER

The motion to tax costs is denied.